

BEFORE THE FEDERAL MARITIME COMMISSION

INTERMODAL MOTOR CARRIERS CONFERENCE,)
AMERICAN TRUCKING ASSOCIATIONS, INC.)

Complainant,

V.

FMC Docket No. 20-14

OCEAN CARRIER EQUIPMENT MANAGEMENT ASSOCIATION, INC.; CONSOLIDATED CHASSIS MANAGEMENT, LLC; CMA CGM S.A.; COSCO SHIPPING LINES CO. LTD.; EVERGREEN LINE JOINT SERVICE AGREEMENT, FMC NO. 011982; HAPAG-LLOYD AG; HMM CO. LTD.; MAERSK A/S; MSC MEDITERRANEAN SHIPPING COMPANY S.A.; OCEAN NETWORK EXPRESS PTE. LTD.; WAN HAI LINES LTD.; YANG MING MARINE TRANSPORT CORP.; AND ZIM INTEGRATED SHIPPING SERVICES,

Respondents.

MOTION FOR CONFIDENTIAL TREATMENT
OF CERTAIN MATERIALS ON CONSENT

Pursuant to 46 C.F.R. §§502.69, 502.141(j)(1) and 502.5(b), Ocean Carrier Equipment Management Association, Inc., Consolidated Chassis Management, LLC, CMA CGM S.A., COSCO Shipping Lines Co. Ltd., Evergreen Line Joint Service Agreement, FMC No. 011982 (“Evergreen”), Hapag-Lloyd AG, HMM Co. Ltd., Maersk A/S, MSC Mediterranean Shipping Company S.A., Ocean Network Express Pte. Ltd., Wan Hai Lines Ltd., Yang Ming Marine Transport Corp., and ZIM Integrated Shipping Services, (collectively, “Respondents”), hereby move for confidential treatment of certain materials (“Motion for Confidential Treatment”) included with or referred to in Respondents’ Opposition to Complainant’s Motion to Strike Declarations and For Sanctions.

Counsel for Respondents have conferred with counsel for the Complainant regarding Respondents' Motion for Confidential Treatment, and counsel for Complainant consents to the relief sought herein.

On June 9, 2021, the presiding officer issued an Order Entering Stipulation and Second Amended Order of Confidentiality ("Confidentiality Order"), providing for the confidential treatment of certain materials produced in discovery in this proceeding ("Confidential Information"). The Protective Order as issued contemplates the use of confidential material in connection with briefing on the merits and requires that Confidential Information disclosed to the Commission and the Administrative Law Judge in papers, including exhibits, shall be labeled in accordance with 46 CFR §502.5 and that "(t)he ALJ shall order an appropriate procedure for the use of the Confidential Information at or during the course of the Proceeding pursuant to 46 CFR §502.141(j)(1)."

Pursuant to the foregoing, the Respondents move for the continued confidential treatment of the categories of evidence set forth below, for the reasons indicated.

1. Fourteen witnesses were produced by the Respondents who testified regarding confidential contracts between intermodal equipment providers ("IEPs") and ocean carriers, requests for proposals and negotiations relating to same and numerous communications, documents and presentations relating to non-public financial, marketing and business activities of the Respondents. All of this testimony and the documents adduced during this testimony were designated "Confidential - Outside Counsel Eyes Only" ("OCEO") pursuant to the Confidentiality Order;
2. Declarations were provided by three IEPs, DirectChassis Link, Inc., Interpool, Inc. d/b/a TRAC Intermodal and Flexi-Van Leasing, LLC which contain proprietary and

commercially sensitive information regarding their respective operational and business activities;

3. Documents were produced, and deposition testimony was given, by subpoenaed motor carriers which are members of the IMCC, by the North American Chassis Pool Cooperative (“NACPC”) and by ChassisLeaseCo LLC (“CLC”), an entity whose primary corporate purpose is to obtain and lease chassis to NACPC. The evidence adduced from these entities involve financial information and operational activities which are commercially sensitive, and which were designated by IMCC’s counsel as OCEO;
4. James Reitzes, the Respondents’ economics expert, and Douglass Coates, the Respondents’ industry expert on chassis operations, submitted reports and Declarations in this proceeding which contain citations to and evaluation of documents and testimony that were designated OCEO. Further, many of the statements in their reports and declarations were designated OCEO.

Pursuant to Rule 502.5 (b), Respondents have filed with this motion a Confidential-Restricted version which designates the confidential material and a Public Version in which the confidential material has been redacted. As indicated above, counsel for Complainant has consented to this Motion for Confidential Treatment, and Counsel for Respondents has consented to Complainant’s motion for similar treatment of the materials it has designated as confidential.

For the foregoing reasons, the Respondents request that the material so designated in the Respondents’ Opposition to Complainant’s Motion to Strike Declarations and For Sanctions be kept confidential and not disclosed to the public.

Respectfully submitted,

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